IN THE CIRCUIT COURT '10 OF GHANA, ACCRA, HELD THIS FRIDAY THE 2ND DAY OF MAY, 2025 BEFORE HER HONOUR EVELYN E. ASAMOAH (MRS)

CASE NO. C1/16/2024

OWUSU GYAMFI = PLAINTIFF

VRS

MARIE SOFIA BELBEL = DEFENDANT

MR. ALEX GYAMFI FOR THE PLAINTIFF

MR PAUL ATIEMO FOR THE DEFENDANT

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JUDGMENT

● The Plaintiff, in the amended statement of claim, stated that he does not know the Defendant and has never granted her his land. He alleges that the Defendant has trespassed on portions of his property and is developing it. He seeks recovery of the subject matter. The Defendant contends that she has a legal and beneficial right to the land and accuses the Plaintiff of trespassing on her property, which originally belonged to her mother.

According to the Plaintiff, he began discussions with his assignor to purchase the land in 2010. On 21st October 2010, he purchased the land from Mr. and Mrs. Amoah and their children, who had previously obtained their grant from Nii Sowah Goo, Head of the Agbawe We family of Teshie, Accra. The land was originally purchased by his assignor with the consent of the principal members of the said family, whose consent/concurrence is required by customary law for the valid grant or alienation of family property. The Plaintiff added that after the acquisition, he exercised various acts of possession over the land, including fixing pillars at the corners of the property with caretakers thereon. The

assignment he acquired was for the unexpired 99 years, subject to renewal, and he has since been in effective occupation and possession of the land, never abandoning or letting it out to any person. He has registered title to the land.

- He pointed out that the Defendant's agents work at night and odd hours. As a result, he has been unable to prevent them from entering the land, and the Defendant has annexed the property without authorization, which prevents him from building, despite having been granted a permit to start construction. In his reply, the Plaintiff stated that he believes "that assuming without admitting that the land belongs to the Defendant, her interest in the land is caught by statute of limitation, laches and acquiescence - that is all rules of equity as the Plaintiff has since the year 2010 exercised various acts of possession over the land including putting pillars at the corners of the plots, building foundation of residential houses on the land to the knowledge of the Defendant without complaints until interferences were noted from the Defendant.' The Plaintiff further contends that the Defendant's conduct constitutes trespass and that the Defendant will not cease her acts of trespass unless compelled by the court. The Plaintiff seeks the following reliefs:

a. *A declaration of title of all that piece or parcel of land situate lying and being at Teshie, Accra bounded on the North by proposed road measuring 90.1 feet more or less, on the east by the assignor's land measuring 69.8 feet more or less, on the south by the assignor's land measuring 84.9 feet more or less, on the west by the assignor's land measuring 80.5 feet more or less and containing an approximate area of 0.15 acre or 0.06 hectare*

b. *General and aggravated damages for trespass*

c. *Recovery of possession*

d. *An order of perpetual injunction restraining the Defendants, their assigns, agents, privies howsoever described, from entering or having any dealings with the Plaintiff's land*

e. *Cost and any other reliefs the court deems fit to make in the circumstances.*

● The Defendant stated that she is the legal and beneficial owner of the land in dispute, having acquired her interest from her late mother, Juliet Kaufman, who lawfully acquired it from her assignors, Mr. and Mrs. Amoah, and her children, in 2003. The Defendant asserts that she lawfully acquired the land in question and has been in undisturbed possession of it since 2016, until 2022, when the Plaintiff trespassed onto the property and claimed ownership, which was reported to the Teshie police station in May 2022.

According to the Defendant, a meeting was held at the Teshie police station, where the Plaintiff presented a receipt evidencing payment to Nicholas A. Laryea for the sale of the disputed land. Nicholas Laryea and Samuel Adjei Odonkor admitted selling the land to the Plaintiff, and they were arrested for the offence of fraudulent land transaction. It was established at the station that the Plaintiff acquired his interest in the land from the wrong parties and that he is not entitled to the relief he claims. The Defendant counterclaimed for the following reliefs.

I. Declaration of title that the Defendant is the legal and beneficial owner of all that piece of land lying and situate at North Teshie in the LEKMA district and containing an approximate area of 0.15 acre or 0.06 hectare and bounded on the north by proposed road measuring 86.9 feet more or less, on the east by assignor's land measuring 69.9 feet more or less and on the south by assignor's land measuring 84.9 feet more or less and on the west by assignor's land measuring 80.3 feet more or less.

II. Perpetual injunction restraining the Plaintiff, his agents, privies, assigns, workmen, and all people claiming through him from entering and dealing with the Defendant's land, the subject of this suit, and cost.

● The issues for trial are as follows:

a) Whether or not the Plaintiff is the owner of the land, the subject matter of the litigation

b) Whether or not the Plaintiff took possession and maintained the subject land after acquiring same

c) Whether or not the Defendant is a trespasser on the Plaintiff's land

d) whether or not the Defendant is the legal and beneficial owner of the subject land

e) whether or not the parties are entitled to their respective claims/counterclaim

● The legal burden is on both the Plaintiff and the Defendant, who counterclaimed, to prove that the land in dispute belongs to each of them.

In the case of ***George Kwadwo Asante Anderic Danpare Asante Vs. Madam Abena Amponsah and Peter Kofi Adu-*** Supreme Court, Accra Civil Appeal Number J4/64/2021 -20th January, 2022- [2022] DLSC11439

Justice Honyenuga, JSC (as he then was), stated:

> "In an action for declaration of title, the onus is heavily on the Plaintiff to prove his case. If the Plaintiff failed to discharge the onus on him and also failed to make a case for the reliefs sought, then he could not rely on the weakness of the Defendant's case to ask for relief. However, if the Plaintiff made a case which would entitle him to relief if the Defendant offered no evidence, then if the case offered by the Defendant disclosed any weakness which supported the Plaintiff's claim, then the Plaintiff was entitled to rely on the weakness of the Defendant's case to strengthen his case. The Supreme Court in Odametey v Clocuh& Another [1989-90] 1 GLR 14 SC succinctly held in holding 1 as follows: -
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> *"(1) the present position, was that if the Plaintiff in a civil suit failed to discharge the onus on him and thus completely failed to make a case for the claim for which he sought relief*

then he could not rely on the weakness in the Defendant's case to ask for relief. If, however, he made a case which would entitle him to relief if the Defendant offered no evidence, then if the case offered by the Defendant when he did give evidence disclosed any weakness which tended to support the Plaintiff's claim, then in such a situation the Plaintiff was entitled to rely on the weakness of the Defendant's case to strengthen his case. That was amply supported by sections 11 and 12 of the Evidence Decree 1975 (N. R. C. D 323)."

Indeed, this authority is backed by the provisions of the Evidence Act, 1975 NRCD 323. It is also for the Plaintiff to prove its methods of acquisition conclusively. In Awuku v Tetteh [2011]1 SCGLR 366 holding (1) this court held as follows:-

"In an action for a declaration of title to land the onus was heavily on the Plaintiff to prove his case. He must, indeed, show clear title. He could not rely on the weakness of the Defendant's case. For a stool or family land to succeed in an action for declaration of title, it must prove its method of acquisition conclusively, either by traditional evidence or by overt acts of ownership exercised in respect of the land in dispute. (Odoi v Hammond [1991] 1 GLR 375 CA applied."

● ***Root of Title – Original Owners***

Issues - A and D

- Whether or not the Plaintiff is the owner of the land, the subject matter of the litigation
- Whether or not the Defendant is the legal and beneficial owner of the subject land

In addressing these issues, the crucial matter to determine initially is who owns the subject land and how it was acquired by the parties.

● ***Plaintiff's Root of Title*** - In tracing his root of title, the Plaintiff's first witness testified that the land originally belonged to Mr. and Mrs. Amoah. At one point, they wanted their

son to travel abroad, so they gave their land documents to their caretaker, Nicholas Laryea, to sell. Nicholas Laryea sold the land to Juliana Kauffman, the Defendant's mother. According to the Plaintiff's first witness, Juliana Kauffman, also appointed Nicholas Laryea as her caretaker. Trespassers attempted to take the land, but Laryea resisted their efforts. Subsequently, Juliana Kauffman passed away, and her children were taken abroad. Her brother, Samuel Odonkor, contacted one of her children, Lucy, when she visited Ghana, and they discussed the land. Lucy expressed no interest in the property, stating that the area was waterlogged, so Odonkor should sell it. Later, Odonkor sold it to the Plaintiff. The caretaker, Nicholas Laryea, in his testimony, admitted that he was appointed a caretaker by Mr. and Mrs. Amoah. He assisted Juliana Kaufmann in purchasing the land from Mr. and Mrs. Amoah, and he was subsequently appointed caretaker of the land. He asserted that after the death of Ms. Kaufmann, her children expressed no interest in the land and authorized Samuel Odonkor to sell it. He stated that the Defendant has no proprietary interest in the land. Mr. Samuel Odonkor asserted that the eldest child of his late sister had authorized him to sell the land, so he sold it to the Plaintiff. He added that he had also sold the land due to the activities of trespassers who were causing problems for the caretaker. According to him, he was in charge of his late sister's estate. That after selling the land, he used the proceeds to purchase another piece of land from Kas Estate for the children of his late sister. However, he did not call the individual in question to testify in this case and did not lead any evidence to prove that he was legally authorized to sell the land.

● In this case, the parties do not dispute that the land originally belonged to Mr. and Mrs. Amoah, who subsequently sold it to Ms. Kaufmann, the Defendant's mother. The Plaintiff's witness testified that the land was purchased from Mr. Samuel Odonkor, who asserts that he was authorized by one of the deceased children to sell the land.

● This is an excerpt of what transpired during the cross-examination of Mr. Odonkor by Counsel for the Defendant.

Q: *Who put you in charge of the estate of the deceased?*

A: *I was in charge of her estate even before she died, so upon her demise in 2008, I thought it wise to pack her stuff and take it with me to Michel camp because her children were not supporting financially in any way, so I did all that was to be done on my own.*

Q*:* *If you were in charge of the estate and the children of Mrs Kauffman were not supporting in any way, you could have simply sold the land without Lucy's consent?*

A: *Lucy is my niece, and she came back to Ghana a year after my sister's death and called me to meet her at Labadi Beach Hotel. I could have sold the land but I did not do any of those because the children promised to send some money for me to develop the land while watching over it but they didn't and after a year Lucy told me that they were no longer interested in the land because the area was waterlogged and asked that I sell the land.*

Q: *I am further suggesting to you that you sold the land because you believed you were in charge and not because Lucy purportedly asked you to sell the land?*

A: *That is not true. Lucy is my niece, but I respect the fact that the land is their property, and they had to give orders regarding it*

Q: *At paragraph 12 of your evidence in chief, you have testified that when you sold the land, you purchased another one for them at Kas Estate – is that correct?*

A: *Yes.*

Q: *Did you seek the consent of the children before you purchased the land for them at Kas Estate, as you say?*

A: *No. I thought it wise to purchase another land for the children upon the advice of the caretaker at the time because of litigation on the land. The children were quite young at the time, so I purchased the land with the intention of giving it to them when they are of age.*

Q: *You have testified in this court that the children promised to send you money so that you could develop the land for them – when was it, before they left or when they were taken by their father while they were abroad?*

A: *It was after their mother's death, before they left the country. They suggested that they would send money for me to develop the land, even if it's a wooden structure, to secure the land. I even advise that they call when they get there so I can get their contact and update them on all the happenings in Ghana, but they didn't.*

● ***Legal Authorization -*** This evidence reveals that the Plaintiff vendor was aware at all material times that he required legal authorization from all the beneficiaries/ children of the deceased before selling the land to the Plaintiff. However, he sold the land without the consent of all the beneficiaries, and he was also not authorized by the beneficiaries/ Ms. Kaufman's children, to acquire a piece of land from the proceeds of the sale.

The Plaintiff tendered in evidence a deed of assignment purportedly executed between Mr. and Mrs. Amoah and the Plaintiffs, dated 21st October 2010. The facts show that Mr. and Mrs. Amoah sold the land to Ms. Kaufman, the Defendant's mother, and not the Plaintiff herein. The Plaintiff also knew that the land was originally in the name of Mr. and Mrs. Amoah. The Plaintiff's witness stated during cross-examination that, 'My brother was in America and when we went to the lands commission, we realized that the land was registered in the name of Mr. and Mrs. Amoah instead of Samuel Donkoh. So I asked Nicholas Laryea if we wouldn't have any issues with Mr. and Mrs. Amoah when they return to Ghana, and he assured us that Mr. and Mrs. Amoah wouldn't return to

Ghana, so we could go ahead and transfer or change the registration to Mr. and Mrs. Owusu Gyamfi.'

The evidence establishes that Mr. and Mrs. Amoah did not execute any lease with the Plaintiff herein. The Defendant's counsel, in his address, rightly stated that the Plaintiff's indenture was procured by fraud, which vitiates all things. The evidence on record shows that the Plaintiff did not acquire the land from the rightful owners.

● ***Defendant's Root of Title* - Legal and Beneficial Owner.**

In the case of **Ago Sai and others V. Kpobi Tetteh Tsuru II (2010) SCGLR 762**, Justice Ansah JSC (as he then was) stated:

> *"… This being an action for a declaration of land, the burden of proof and persuasion remained on the Plaintiffs to prove conclusively that, on a balance of probabilities, he was entitled to his claim of title. This he could do by proving on the balance of probabilities the essentials of their root of title and method of acquiring title to the area in dispute…"*

The next question to consider is whether the Defendant is the owner of the disputed land. The Defendant asserted in her evidence that she is the legal and beneficial owner of the land and that she acquired her interest from her late mother, Juliana Kaufman, in 2008. Her interest was formalized by an indenture dated July 4, 2016, between her and her mother. However, the evidence reveals that the Defendant's mother passed away in 2008. During cross-examination, the Defendant explained that this purported document was given to her by her mother prior to her death and that it was dated when presented to the land commission for registration. The Defendant could not establish that her mother conveyed the land to her or that she is the sole legal owner of the property. As a child of the deceased, she has a beneficial/equitable interest in the subject land.

● **Possession, Trespass, Laches, Acquiescence**

Issues B and C

- Whether or not the Plaintiff took possession and maintained the subject land after acquiring same
- Whether or not the Defendant is a trespasser on the Plaintiff's land

In the case of **Abbey and others V. Antwi V (2010) SCGLR 17, Justice** Dotse JSC (as he then was) stated:

> *"…In the final analysis, it was the hard facts of overt acts of ownership and possession coupled with recent and contemporaneous acts by their predecessors which decided the issue if declaration of title and other reliefs in favour of the Plaintiff…"*

● The Plaintiff's vendor, Mr. Samuel Odonkor, stated in paragraph 15 of his witness statement that the Plaintiff exercised various acts of possession over the land, including fixing pillars at the corners of the property, constructing a residential house foundation, and fencing the property with caretakers thereon. However, during cross-examination, he denied making these assertions. Ibrahim Isaka, the Plaintiff's caretaker, contended that he does not live on the disputed land; instead, his brother-in-law, the Defendant's caretaker, lives on the land in dispute.

He stated: '*Yes. I spoke to Alhassan, the brother of the Plaintiff, about my brother-in-law, who was having challenges with accommodation, so he is currently occupying the land. I am the caretaker, but I do not live there… It was in 2016 when we were having issues with Spirit. I put him there so he could inform me if anything is going on the land…'* The Plaintiff could not present evidence to establish that Isaac Kwakye, who has been on the land since 2016, was put there by their caretaker.

The Defendant's caretaker, Isaac Kwakye, testified that the Defendant engaged him to stay on the land and keep an eye on it for her. The Defendant tendered in evidence photographs of the caretaker's structure on the disputed land, the footings, and the wall (Exhibit 3 series), which were put on the land by her mother. The court finds that the Defendant, as the beneficial owner, has been in possession of the disputed land, and there is no evidence on record that she failed to protest any trespass on the property. Issues of limitation, laches, and acquiescence do not arise.

● In the case of **Mary Tsotso Laryea and 4 Others** V. **Amarkai Laryea** [2018] DLSC194, the Court ruled:

> *'Estoppel by laches arises where a party's legal right is infringed upon, but for a reasonably long period, he fails to protest, leading the one who infringed upon the right to believe that he would never complain. In those circumstances, equity would grant protection against such stale claims.*

According to the Defendant, after her mother acquired the land, she built a wall, made footings, and mounted a structure on the property to accommodate her caretaker. The Defendant maintained that she has always been in lawful and undisturbed possession of the land since 2016. Her caretaker further pointed out that a wall had been constructed around the land, with footings and iron rods, and a wooden structure on top of it. He has lived on the land with his wife since 2016 without any questions or opposition from anyone. He reported to the Defendant instances of encroachment on the land, and on each occasion, the Defendant took steps to fend off the encroachers. In 2022, some people deposited sand and stones on the land and claimed ownership of it. He informed the Defendant of these occurrences, and the matter ended at the police station.

The evidence clearly establishes that the Defendant, as one of the children of the deceased landowner, has a beneficial interest in the land and has exercised overt acts of ownership

and possession of it. The Plaintiff failed to prove that he legally acquired the disputed land or that it belongs to him. In the circumstance, the Plaintiff's claim is hereby dismissed. The court enters judgment for the Defendant as follows:

- Declaration of beneficial ownership/right in the subject matter to the Defendant
- Perpetual injunction against the Plaintiff, his agent, assigns, privies, workmen, and all people claiming through him from entering, or dealing with the subject matter of this suit.
- Cost of GHc 12,000 against the Plaintiff.

(SGD)

H/H EVELYN E. ASAMOAH (MRS)

CIRCUIT COURT JUDGE